

23BBCV02923 23BBCV02923

County: los-angeles

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Case Number: 23BBCV02923 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL DEPOSITION

Hearing Date: 7/10/26

CASE NO./NAME: 23BBCV02923

Rosemary Camara v. Los Angeles County Metropolitan Transportation Authority,
and DOES 1 to 25, inclusive

Moving Party: Plaintiff

Rosemary Camara

Responding Party: Defendant Los Angeles County

Metropolitan Transportation Authority

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the

hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal injury case. On April 10, 2024, Plaintiff Rosemary Camara filed the First Amended Complaint against defendant Los Angeles County Metropolitan Transportation Authority (Defendant) and DOES 1-25 inclusive alleging personal injury arising from a slip and fall incident at the North Hollywood Metro Station.

On March 30, 2026, Plaintiff served deposition notices to employees of Defendant, Abel Rodrigues (AR), Custodian Carr (CC) and Person Most Knowledgeable (PMK) regarding the incident. The depositions were set to be held on May 21, 2026. On May 15, 2026, Defendant served objections to the depositions. On the same day, Plaintiff inquired about availability for the outstanding depositions. Defendant has not responded to the inquiry, and their employees have not been deposed.

On June 9, 2026, Plaintiff filed the instant motion to compel the deposition of Defendant's employees. On June 26, 2026, Defendant filed an opposition. On July 2, 2026, Plaintiff filed a reply.

MEET AND CONFER

A motion to compel deposition "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.450, subd. (b)(2).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel

declares that "[o]n the same date that the objections were served, Plaintiff's counsel once again emailed defense counsel and stated that Plaintiff's counsel would need dates of availability for the three outstanding

deponents by June 5, 2026, otherwise, Plaintiff's counsel would file Motions to Compel". (Postajian Decl., ¶ 5.)

Defendant argues that meet and confer efforts were inadequate because Plaintiff's attempt to meet and confer consisted of a "single email ultimatum" and Plaintiff did not attempt to call Defendant or propose a resolution. (Bihr Decl., ¶ 7.)

Plaintiff's efforts to meet and confer consist only of the emails sent prior to Defendant's objections and Defendant presented objections. Here, Plaintiff has not demonstrated a good faith effort at informally resolving the issues presented by this motion and does not satisfy the meet and confer requirement. The Court admonishes Plaintiff to make more effort in meeting and conferring in the future. Despite the failure to meet and confer, the Court is considering the motion on the merits.

LEGAL STANDARD

The Code of Civil Procedure provides: "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subd. (b).)

DISCUSSION

Motion to Compel Depositions

Plaintiff argues

that Defendant has not provided dates for noticed depositions for several months after notices were served. (Mot., p. 5.) Plaintiff argues that Defendant is preventing Plaintiff from obtaining information through the depositions and production of documents as required by the notices of deposition. (Ibid.)

Defendant argues

that the motion is premature and fails because requested deponents have not failed to appear and Defendant has served timely objections. (Opp., pp. 4-5.) Defendant argues that they presented valid written objections at least five days prior to each proposed deposition date, exceeding the three-day statutory requirement. (Opp., p. 5.) Moreover, Defendant argues that because valid written objections were served, no party expected the depositions to move forward at the noticed times and no deponent failed to appear. (Ibid.)

In reply,

Plaintiff argues that Defendant has still refused to provide two of the three deponents and is abusing the discovery process. (Reply, p. 2.)

Here, Defendant

served timely objections to Plaintiff's notice of deposition. Code of Civil Procedure section 2025.450 subdivision (a) provides that a party may file a motion to compel a deposition absent a valid objection under Section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).) A valid written objection under section 2025.410 must be served at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410 (a).)

The notices of

deposition served on Defendant listed deposition dates as May 19, 2026, for AR, May 20, 2026, for CC, and May 21, 2026, for PMK. (Postajian Decl., ¶ 2, Exh. A.) Defendant served valid written objections to these depositions on May 14, 2026 and May 15, 2026. (Bihr Decl., ¶ 4.) Defendant served a valid written objection to the deposition of AR on May 14, 2026, 5 calendar days before the deposition.

(Bihr Decl., ¶ 4, Exh A.) Defendant served a valid written objection to the depositions of CC and PMK on May 15, 2026, 5-6 calendar days before the depositions. (Ibid.) Thus, Defendant served timely valid written objections to Plaintiff. Since Plaintiff received timely objections to the depositions, Plaintiff's motion to compel depositions under section 2025.450 is denied.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Plaintiff argues

that Defendant has intentionally and willfully misused the discovery process. (Mot., p. 6.) Plaintiff argues that Defendant has failed to produce the requested deponents despite continued efforts for two and a half months. (Ibid.)

Defendant

argues that sanctions are moot and not warranted because the motion must fail on its merits. (Opp., 7.) Moreover, Defendant argues that sanctions should be imposed against Plaintiff for engaging in a misuse of the discovery process by filing the instant premature and meritless motion. (Opp., pp. 9-10.)

In

reply, Plaintiff reiterates that they believe sanctions are warranted. (Reply, p. 3.)

Here,

sanctions are not warranted against Defendant because Plaintiff's motion to compel deposition has been denied. The Court declines to address Defendant's request for sanctions against Plaintiff for engaging in misuse of the discovery process. Defendant is welcome to file a motion for sanctions.

CONCLUSION

AND ORDER

Plaintiff

Rosemary Camara's motion to compel deposition is DENIED.

Plaintiff shall provide notice of
this order.

Hon. Victor Avila

Judge of the Superior Court